

Shivmahraj v. State of U.P. & 6 Others

Allahabad High Court · Division Bench · 1 July 2024 · 2024:AHC:105830-DB · WRIT - C No. 16876 of 2024 · **Writ petition disposed of; petitioner directed to appear before District Magistrate with status quo pending decision**

HEADNOTE

Companion ruling to SCJ-104 (Priy Shankar Pandey v. State of U.P.), decided by an overlapping Bench roughly contemporaneously, on materially identical facts: a landowner's objection to a new electric pole/line being erected on his private property to supply village residents is to be resolved under Clause 3 of the Works of Licensees Rules, 2006 by the District Magistrate (or Commissioner of Police/authorised officer), balancing the landowner's Clause 4.5(d) Supply Code right to object against the public interest in the electrification work not being unduly stalled.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

Companion ruling to SCJ-104 — identical holding on a parallel landowner objection to a new power line/pole for village electrification

HOLDING

As in SCJ-104: the landowner has a right under Clause 4.5(d) of the Supply Code to object to a supply line/pole being erected over his land; that objection is to be resolved under Clause 3 of the Works of Licensees Rules, 2006 by the District Magistrate or other authorised officer, balancing the landowner's rights against the public interest in the electrification work. The petitioner was directed to appear before the District Magistrate (already scheduled to hear similar grievances) with all relevant material, to be heard and a decision passed after hearing all parties including the licensee respondents, with status quo maintained in the interim. ¶ [unnumbered order](#)

LIMITING FACTS

The petitioner objected to a new electric pole being erected on his private property and to a line from that pole supplying electricity to village residents, who in turn contended the petitioner was obstructing an urgently-needed public electrification work — materially identical facts to SCJ-104 (Priy Shankar Pandey), decided about nine months earlier by an overlapping Bench.

FLAG Near-identical companion order to SCJ-104; recorded compactly given the substantially duplicate reasoning and holding.

PRINCIPLE TAGS

[clause-4.5d-landowner-objection-to-supply-line](#)

Companion application of the same principle as SCJ-104 (Priy Shankar Pandey v. State of U.P.). ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE POLE/LINE PLACEMENT ON THE PETITIONER'S LAND SHOULD PROCEED OR BE RELOCATED

Not decided; left to the Clause 3, Works of Licensees Rules 2006 authority (District Magistrate) after hearing all parties.

¶ [unnumbered order](#)